

BEFORE THE IOWA BOARD OF SOCIAL WORK

IN THE MATTER OF:	)	CASE NUMBER: 09-026
	)	
ELIZABETH N. MCCLOUD,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
Respondent.	)	

COME NOW the Iowa Board of Social Work ("Board") and Elizabeth N. McCloud ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2009), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. Respondent is licensed to practice as a master social worker in the state of Iowa. Respondent was issued license number 304-04403 to practice as a social worker in the state of Iowa on August 18, 1998.
2. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on February 8, 2010. A contested case hearing in this matter is scheduled for May 10, 2010.
3. Respondent's current address as reported to the Board is 150 S. 4th Street, Apt. 11, Maynard, IA 50655.
4. The Board has jurisdiction of the parties and the subject matter.
5. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives Respondent's right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final

Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following contested case hearing.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and Respondent agrees that the State's counsel may present this agreement to the Board and may have ex parte communication with the Board while presenting it.

7. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C. The Notice of Hearing and Statement of Charges is also a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 17A, 22, and 272C.

10. The Board's approval of this Settlement Agreement and Final Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

11. Respondent is hereby **CITED** for (1) failing to cooperate with a Board audit, (2) failing to meet the continuing education requirement for licensure, and (3) submission of a false report of continuing education, for reporting at the time of renewal

of her social work license that she had completed the required continuing education when she had not in fact completed such education at that time and for failing to respond to the Board within the timelines outlined by the Board. Respondent is hereby **WARNED** that violation of the Board's rules in the future could result in further disciplinary action against her social work license, including but not limited to the suspension or revocation of her license.

12. Respondent shall remit to the Board a civil penalty in the amount of one hundred dollars (\$ 100.00) made payable to the Board of Social Work, within ninety (90) days of the date of this agreement.

13. In the event the Respondent violates or fails to comply with any of the terms or provisions of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend the Respondent's license or to impose other licensee discipline as authorized by Iowa Code section 272C.3(2)(a).

This settlement agreement and final order is approved by the board on May 10, 2010.